

Guidelines on Extended Producer Responsibility for Plastic Packaging

1. Background:

(1.1) The Ministry of Environment, Forest and Climate Change (MoEFCC), (hereinafter referred to as ‘The Ministry’), notified the Plastic Waste Management Rules, 2016 on 18th March, 2016. The Ministry also notified the Solid Waste Management Rules, 2016 on 8th April, 2016. As plastic waste is part of solid waste, therefore, both the rules apply to managing plastic waste in the country.

(1.2) The Plastic Waste Management Rules, 2016, mandate the generators of plastic waste to take steps to minimize generation of plastic waste, not to litter the plastic waste, ensure segregated storage of waste at source and hand over segregated waste in accordance with rules. The rules also mandate the responsibilities of local bodies, gram panchayats, waste generators, retailers and street vendors to manage plastic waste. (1.3) The Plastic Waste Management Rules, 2016 cast Extended Producer Responsibility on Producer, Importer, and Brand Owner. Extended Producer Responsibility shall be applicable to both pre-consumer and post-consumer plastic packaging waste.

(1.4) These guidelines provide framework for implementation of Extended Producer Responsibility. The Guidelines provide the roles and responsibilities of Producers, Importers, Brand Owners, Central Pollution Control Board, State Pollution Control Board or Pollution Control Committees, recyclers and waste processors for effective implementation of Extended Producer Responsibility. The definitions given in Plastic Waste Management Rules, 2016, apply until, specifically mentioned in these guidelines;

2. Date of Coming into Effect:

These guidelines shall come into force with immediate effect. The on-going processes related to Extended Producer Responsibility obligations will be aligned with these guidelines.

3. Definitions:

(a) **“Biodegradable plastics”** means that plastics, other than compostable plastics, which undergoes complete degradation by biological processes under ambient environment (terrestrial or in water) conditions, in specified time periods, without leaving any micro plastics, or visible, distinguishable or toxic residue, which have adverse environment impacts, adhering to laid down standards of Bureau of Indian Standards and certified by Central Pollution Control Board.

(b) **“Brand Owner”** means a person or company who sells any commodity under a registered brand label or trade mark;

(c) **“Carry Bags”** (covered under Category II of plastic packaging – Clause (5.1) (II)) means bags made from plastic material or compostable plastic material, used for the purpose of carrying or dispensing commodities which have a self-carrying feature but do not include bags that constitute or form an integral part of the packaging in which goods are sealed prior to use ;

(d) **“End of Life disposal”** means using plastic waste for generation of energy and includes co-processing (e.g. in cement kilns) or waste to oil or for road construction as per Indian Road Congress guidelines, etc;

(e) **“Extended Producer Responsibility”** means the responsibility of a producer for the environmentally sound management of the product until the end of its life;

(f) **"Importer"** means a person who imports plastic packaging product or products with plastic packaging or carry bags or multilayered packaging or plastic sheets or like;

(g) **"Plastic"** means material which contains as an essential ingredient a high polymer such as polyethylene terephthalate, high density polyethylene, Vinyl, low density polyethylene, polypropylene, polystyrene resins, multi-materials like acrylonitrile butadiene styrene, polyphenylene oxide, polycarbonate, polybutylene terephthalate;

(h) **"Plastic Packaging"** means packaging material made by using plastics for protecting, preserving, storing and transporting of products in a variety of ways.

(i) **"Plastic Sheet"** means plastic sheet is the sheet made of plastic;

(j) **"Plastic Waste Processors"** means recyclers and entities engaged in using plastic waste for energy (waste to energy), and converting it to oil (waste to oil), industrial composting.

(k) **"Pre-consumer plastic packaging waste"** means plastic packaging waste generated in the form of reject or discard at the stage of manufacturing of plastic packaging and plastic packaging waste generated during the packaging of product including reject, discard, before the plastic packaging reaches the end-use consumer of the product.

(l) **"Post-consumer plastic packaging waste"** means plastic packaging waste generated by the end-use consumer after the intended use of packaging is completed and is no longer being used for its intended purpose.

(m) **"Producer"** means person engaged in manufacture or import of carry bags or multilayered packaging or plastic sheets or like, and includes industries or individuals using plastic sheets or like or covers made of plastic sheets or multilayered packaging for packaging or wrapping the commodity;

(n) **"Recyclers"** are entities who are engaged in the process of recycling of plastic waste;

(o) **"Recycling"** means the process of transforming segregated plastic waste into a new product or raw material for producing new products;

(p) **"Reuse"** means using an object or resource material again for either the same purpose or another purpose without changing the object's structure;

(q) **"Use of recycled plastic"** means recycled plastic, instead of virgin plastic, is used as raw material in the manufacturing process;

(r) **"Waste Management"** means the collection, storage, transportation reduction, re-use, recovery, recycling, composting or disposal of plastic waste in an environmentally sound manner;

(s) **"Waste to Energy"** means using plastic waste for generation of energy and includes co-processing (e.g. in cement kilns).

4. Obligated Entities:

The following entities shall be covered under the Extended Producer Responsibility obligations and provisions of these guidelines namely: -

- (i) Producer (P) of plastic packaging;
- (ii) Importer (I) of all imported plastic packaging and / or plastic packaging of imported products;
- (iii) Brand Owners (BO) including online platforms/marketplaces and supermarkets/retail chains other than those, which are micro and small enterprises as per the criteria of Ministry of Micro, Small and Medium Enterprises, Government of India.;
- (iv) Plastic Waste Processors

5. Coverage of Extended Producer Responsibility:

(5.1) The following plastic packaging categories are covers under Extended Producer Responsibility:

(i) Category I

Rigid plastic packaging;

(ii) Category II

Flexible plastic packaging of single layer or multilayer (more than one layer with different types of plastic), plastic sheets or like and covers made of plastic sheet, carry bags, plastic sachet or pouches;

(iii) Category III

Multilayered plastic packaging (at least one layer of plastic and at least one layer of material other than plastic);

(iv) Category IV

Plastic sheet or like used for packaging as well as carry bags made of compostable plastics.

(5.2) The Extended Producer Responsibility Guidelines covers the following with respect to plastic packaging namely: -

- (i) Reuse;
- (ii) Recycling;
- (iii) Use of recycled plastic content;
- (iv) End of life disposal.